

What Amy’s Sep 13 email actually says

Per Diem Agreement · Amy Bain, COO · to Evan Stoopler and Dr. Kim · Sep 13, 2026

Quoted rates: On Shift Rate \$250 · On Call Fee \$300 · **Prod/Sal: 23%**.

She also wrote she would send a more formal agreement the next day. The email lists three rates. It does *not* write the formula (hourly plus 23%, or 23% minus hourly / higher of the two).

Honest read: “Prod/Sal” is the usual label for prosal, not “production on top of per diem.” The earlier text (“\$250 and whatever production”) is informal. This email is the written rate sheet they will point to.

TWO READINGS OF THE SAME EMAIL

	A. Additive (your invoices)	B. Prosal (Evan’s texts)
How you read the three lines	Pay all three: \$250/hr + \$300 on-call + 23% of Gross	Pay \$250/\$300 as the floor; 23% is the production side of Prod/Sal; true-up only the difference
Formula	Hourly + (23% × positive Gross)	max(Hourly, 23% × Gross), or Hourly now + quarterly max(0, 23%Gross – Hourly)
Fits the word “Prod/Sal”?	Weak — that word usually means B	Stronger — that is what Prod/Sal means in vet hospitals
Fits “and production” text?	Stronger	Weaker
Defined in the Sep 13 email?	No	No — Evan defined it later by text

YOUR SHIFTS UNDER EACH READING

Period	Hourly	23% × Gross	A. Additive	B. Prosal	A – B
Sep 8–15 Roslyn	\$8,900.00	\$2,375.05	\$11,275.05	\$8,900.00	\$2,375.05
Sep 19 Midtown 8p–12a	\$1,000.00	\$137.69	\$1,137.69	\$1,000.00	\$137.69
Both	\$9,900.00	\$2,512.74	\$12,412.74	\$9,900.00	\$2,512.74

Under B, 23% is below hourly both times, so the quarterly difference is \$0. ADP should still show the \$250/\$300 hourly now. Production true-up is a later question.

WHAT TO ASK FOR IN WRITING

Reply-all on Amy’s Sep 13 email. Do not argue that the email says “production on top.” It says Prod/Sal. Ask for the formal agreement she promised, and one sentence for the formula.

If they confirm B: revise invoices to hourly only (\$8,900 + \$1,000) and wait for quarterly true-up. If they confirm A: keep the invoices as sent.

Cremation to a third party: only changes the 23% base. Ask for those line items either way.